

Hakim Singh v. State of U.P. and Others

Allahabad High Court · Division Bench · 21 February 2023 · Writ - C No. 20739 of 2011 · **Writ petition dismissed for want of prosecution.**

HEADNOTE

A consumer challenged a recovery certificate sent to the Collector, Aligarh, alleging that no checking of his premises had been made, that an FIR dated 9 April 2008 had been lodged, that no provisional assessment was ever served, and that recovery had been launched without complying with the Electricity Act, 2003 and the U.P. Electricity Supply Code, 2005. On 18 May 2011 the Division Bench issued notice and stayed recovery on deposit of Rs 1,05,000 without prejudice. The writ was dismissed for want of prosecution on 2 August 2011, restored on 4 November 2011 with the interim restored, and the interim later continued until further orders. On 21 February 2023 none appearing even in the revised call, the writ was dismissed for want of prosecution. Whether a provisional assessment had been served, and whether the recovery complied with the Act and the Code, were not decided.

FACTUAL SUMMARY

Hakim Singh filed Writ-C No. 20739 of 2011 against the State of U.P. and others, challenging a recovery certificate sent by respondent no. 2 to the Collector, Aligarh. He contended that no checking of his premises had been made, that an FIR dated 9 April 2008 had been lodged against him, that no provisional assessment was ever served, and that the certificate had been issued without complying with the Electricity Act, 2003 and the U.P. Electricity Supply Code, 2005.

After listings to file a typed copy of the certificate and for the licensee's instructions, the Court on 18 May 2011 issued notice and stayed recovery on deposit of Rs 1,05,000 within four weeks, without prejudice, with automatic vacation on default. The writ was dismissed for want of prosecution on 2 August 2011 and the interim vacated; that order was recalled on 4 November 2011 and the writ and interim restored. On 29 November 2011 the interim was continued until further orders. On 21 February 2023 none appeared for the petitioner even in the revised call.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::8.1

No checking, FIR, and no provisional assessment before a recovery certificate; recorded only, then writ dismissed for want of prosecution

HOLDING

On 18 May 2011 the Court recorded the petitioner's case that no checking of his premises had been made, that an FIR dated 9 April 2008 had been lodged, that no provisional assessment was ever served, and that a recovery certificate had been sent to the Collector, Aligarh, without complying with the Electricity Act, 2003 and the U.P. Electricity Supply Code, 2005. Notice was issued. Recovery was stayed till the next date if the petitioner deposited Rs 1,05,000 within four weeks, without prejudice, with automatic vacation on default. The Court did not construe a numbered Code clause or decide those allegations. ¶ 18.5.2011

QUALIFIER

Interlocutory only (18.5.2011, Satya Poot Mehrotra, J. and Mrs. Jayashree Tiwari, J.).

FLAG Thin procedural record. The Court cited the Act and the Code generally; no numbered clause. FIR plus alleged want of checking and of a provisional assessment before recovery is keyed to Clause 8.1 as the theft-assessment procedure that this pattern matches; it could equally be Clause 6.8 if the demand was for unauthorised use — the order does not say. Unnumbered order-sheet: 8.4.2011 and 6.5.2011 are listings; 18.5.2011 is the stay; 2.8.2011 dismissed for want of prosecution (interim vacated); 4.11.2011 restored the writ and interim; 29.11.2011 continued the interim until further orders.

HOLDING

On 21 February 2023 the case was called in the revised list, none was present for the petitioner, and the writ petition was dismissed for want of prosecution. The Court did not decide whether checking had taken place, whether a provisional assessment had been served, or whether the recovery certificate complied with the Electricity Act, 2003 and the U.P. Electricity Supply Code, 2005. ¶ 21.2.2023

FLAG The 21.2.2023 order (Manoj Kumar Gupta and Syed Qamar Hasan Rizvi, JJ.) does not expressly discharge the 18.5.2011 stay, which 29.11.2011 had continued until further orders. An earlier 2.8.2011 dismissal that vacated the interim was recalled on 4.11.2011.

PRINCIPLE TAGS

writ-petition-dismissed-for-want-of-prosecution-on-non-appearance After a 2011 conditional stay of recovery on a no-provisional-assessment challenge, and after a 2011 restoration of a first non-prosecution dismissal, the writ was dismissed for want of prosecution on 21.2.2023 when none appeared even in the revised call, leaving the recovery undecided. ¶ 21.2.2023

opportunity-before-final-assessment The 18.5.2011 Bench recorded the petitioner's case that no provisional assessment was ever served before the recovery certificate was sent to the Collector, Aligarh, and stayed recovery on deposit. The point was never decided after the 21.2.2023 dismissal for want of prosecution. ¶ 18.5.2011

restoration-of-writ-after-non-prosecution-disposal The 2.8.2011 dismissal for want of prosecution, which vacated the interim, was recalled on 4.11.2011; the writ was restored to its original number and the interim restored, cause shown being sufficient. ¶ 2.8.2011, 4.11.2011

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER CHECKING OF THE PETITIONER'S PREMISES WAS MADE, AND WHETHER AN FIR DATED 9.4.2008 COULD SUPPORT THE RECOVERY

Recorded as the petitioner's case on 18.5.2011; never adjudicated after dismissal for want of prosecution.

¶ 18.5.2011, 21.2.2023

NOT DECIDED — WHETHER A PROVISIONAL ASSESSMENT WAS SERVED BEFORE THE RECOVERY CERTIFICATE WAS SENT TO THE COLLECTOR, ALIGARH

The petitioner alleged that none was ever served; the Court did not decide service or the existence of a provisional or final assessment. ¶ 18.5.2011

NOT DECIDED — WHETHER THE RECOVERY CERTIFICATE COMPLIED WITH THE ELECTRICITY ACT, 2003 AND THE U.P. ELECTRICITY SUPPLY CODE, 2005, INCLUDING WHETHER THE DEMAND WAS A THEFT ASSESSMENT (CLAUSE 8.1) OR UNAUTHORISED USE (CLAUSE 6.8), AND THE CORRECTNESS OR QUANTUM OF THE DEMAND

The Act and the Code were invoked generally without a numbered clause; the assessment was not examined on the merits. ¶ 18.5.2011, 21.2.2023